

Court No. - 10

Case :- WRIT - C No. - 20029 of 2017

Petitioner :- M/S Santosh Stationary Private Limited

Respondent :- Purvanchal Vidyut Vitran Nigam Thr. Its Chairman And 3 Ors.

Counsel for Petitioner :- Sanjiv Singh

Counsel for Respondent :- Mahboob Ahmad

Hon'ble Arun Tandon, J.

Hon'ble Mrs. Rekha Dikshit, J.

The Electricity Consumer Grievance Redressal Forum under the order impugned has recorded that the complaint as made by the petitioner-consumer is not covered within four corners of Clause 7.10 of the Uttar Pradesh Electricity Supply Code, 2005. The petitioner is not satisfied.

In our opinion, if the petitioner is aggrieved by the decision of the Electricity Consumer Grievance Redressal Forum, he has the statutory alternative remedy of approaching the ombudsman under Clause 7.10 (iv). The writ petition is dismissed with liberty to approach the ombudsman.

In the facts of the case it is provided that the petitioner approaches the ombudsman within four weeks from today along with certified copy of this order. The ombudsman shall decide the grievance of the petitioner preferably within 8 weeks of receipt of the same on merits.

The writ petition is accordingly, **dismissed**.

(Rekha Dikshit, J.)

(Arun Tandon, J.)

Order Date :- 9.5.2017

Nitin Verma